

20SMCV00343 20SMCV00343

County: los-angeles

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TENTATIVE RULING

July 9, 2026

20SMCV00343 (Paperman v. Besser,
et. al.)

RELEVANT BACKGROUND

On March 3, 2020, plaintiff Deborah Paperman (Plaintiff) filed her complaint against defendants Sean Besser (Sean) and Samantha Besser (Samantha) (collectively, Defendants), alleging ten causes of action: (1) Breach of Contract; (2) Breach of Implied Warranty of Habitability / Tenantability (CCC Sec. 1941. and H&S Code 17920.3 et seq); (3) Breach of Implied Warranty of Quiet Enjoyment (CCC Sec. 1927); (4) Negligence; (5) Retaliatory Acts (CCC Sec. 1940.2 and 1942.5); (6) Breach of CCC § 1950.5 et seq (Failure to Return Deposit); (7) Breach of Covenant of Good Faith and Fair Dealing; (8) Constructive Eviction; (9) Fraud, Deceit, Concealment; (10) Violation of Cal Penal Code § 496.

On October 14, 2022, Plaintiff filed her first amended complaint (FAC), alleging the same causes of action, as well as a new eleventh cause of action for Rescission.

INSTANT MOTION

On May 15, 2026, Plaintiff filed the instant motion for leave to file a second amended complaint (SAC).

No opposition has been filed.

DISCUSSION

"A court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading." (Code Civ. Proc., § 473, subd. (a)(1).) The court's discretion will usually be exercised liberally to permit amendments of the pleadings. (Nestle v. City of Santa Monica (1972) 6 Cal.3d 920, 939.) "If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion." (Morgan v. Superior Court (1959) 172 Cal.App.2d 527, 530.) Courts may grant a motion to amend as late as the time of trial and even postpone the trial if necessary to the furtherance of justice. (Honig v. Financial Corp. of America (1992) 6 Cal. App. 4th 960, 965.)

Under Rule 3.1324, subdivision (a) of the California Rules of Court, a motion to amend a pleading shall (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (Cal. Rules of Court, rule 3.1324, subd. (a).)

Under Rule 3.1324, subdivision (b) of the California Rules of Court, a separate declaration must accompany the motion and must specify (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (Cal. Rules of Court, rule 3.1324, subd. (b).)

Here, Plaintiff has provided a copy of the proposed SAC attached to the declaration of counsel,

Whitney Ackerman. (See Ackerman Decl., Ex. A.) The Ackerman declaration complies with the applicable California Rules of Court. Ackerman explains in her declaration that the proposed SAC specifies the dollar amounts of damages Plaintiff seeks, as the Court previously indicated should be set forth in the operative pleading. The SAC also adds a cause of action for premises liability. No new defendants are added.

The Court agrees with Plaintiff that she acted diligently in bringing this motion, as the action remained on appeal and was restored to the trial court's active docket only the week before the filing of this motion. The Court further agrees with Plaintiff that allowing amendment is in the interests of justice and there is no showing of prejudice. No trial date has been set, no new defendants are being added, and the amendment introduces no new facts.

No opposition has been filed.

Accordingly, Plaintiff's unopposed motion for leave to file the SAC is GRANTED. Plaintiff may have ten (10) days in which to file and serve the SAC.